



## **POLICY AND PROCEDURES**

### **Complaints**

#### **Policy**

- Linslade Galaxy Football Club (LGFC) is committed to the efficient resolution of complaints.
- LGFC understands that complaints can be a valuable source of information that can help the Club improve the way in which it manages and promotes its activities.
- LGFC recognises that the manner in which complaints are handled is important in order to protect the good reputation of the club and to improve member's confidence particularly after the incident of a complaint.
- LGFC is committed to providing a complaints handling framework that: -
  - provides an efficient, fair and accessible mechanism for resolving complaints.
  - monitors complaints in an endeavour to improve the quality of services.
  - promotes a positive attitude towards members and complaints handling.

#### **Commitment**

LGFC is committed to the efficient and fair resolution of all complaints. The Club recognises that a person has a right to complain if and when they feel that they have not been treated fairly or received appropriate support from the Club.

#### **Fairness**

All parties to the complaint will be treated fairly and with respect. This applies to the complainant, the respondent and Committee members making decisions on behalf of the Club.

#### **Natural Justice**

LGFC upholds the principle that natural justice is the minimum standard of fairness to be applied in the investigation and adjudication of a dispute. Natural justice is taken to mean the right of a person to have a complaint investigated with fairness, impartially and in confidence, with the respondent being given the opportunity to respond to any allegations.

#### **Application**

Formally alleged, suspected or reported breaches of the relevant club policies or codes of conduct by Club Managers, Players, Officials and Supporters will be dealt with in accordance with this Policy & Procedures.

Complaints made in accordance with this policy may include:

- Alleged breaches of the Player Code of Conduct
- Alleged breaches of the Parent Code of Conduct
- Alleged breaches of the Manager Code of Conduct
- Harassment, bullying or intimidation
- Discrimination

This policy does not override requirements for reporting of incidents of a criminal nature. Complaints alleging criminal behaviour should be reported immediately to police.

Complaints should be factual, objective and should avoid the use of emotive and provocative language. In making a complaint, it is hoped that people will acknowledge that LGFC is a volunteer organisation and that volunteers give their time freely. Complaints should not be made vexatiously.

### **Access**

Complaints may be initiated by letter, email, telephone or in person to the Chairperson or Vice Chair, however once a formal complaint has been made, this must be signed and in writing (not email).

### **Responsiveness**

LGFC is committed to a culture where prompt and courteous responses to complaints is encouraged and fostered with the approved guidelines.

### **Confidentiality**

LGFC Committee members will receive updates on any complaints at the next Committee meeting. LGFC Committee members who are responsible for implementing this policy will, if appropriate, keep confidential the names and details related to complaints unless disclosure is necessary as part of the disciplinary or corrective process. Where a complaint is discussed at a meeting of the LGFC Committee, and depending on the seriousness of the complaint, observers who are not members of the Committee may be asked to exclude themselves from the meeting during the discussion to ensure that confidentiality is maintained.

Committee members are obliged to ensure that information relating to complaints remains confidential and that details are not disclosed to other members or other parties.

## **Procedures**

In the event that any member feels that he or she has suffered discrimination in any way or that the Club Policies, Rules or Code of Conduct has been broken they should follow the procedures below.

### **Informal Process**

1. A club member wishing to discuss a complaint will make an initial approach to the Chairperson or Vice Chairperson to discuss the complaint. Information will be provided to clarify the nature of the complaint and discussions will be held about options for resolution.
2. The Chairperson or Vice Chairperson should clarify whether the complainant wants him or her to act as a mediator or simply wishes to talk the matter through. If the complainant wants the Chairperson or Vice Chairperson to help resolve the complaint, he or she will do this on informal basis initially.
3. If the Chairperson or Vice Chairperson is unable to act impartially due to a real or perceived conflict of interest including close friendships with either the respondent or the complainant, he/she should make this known to the complainant and may nominate another Committee member to assist. The person chosen to mediate must act in an impartial manner and promote resolution of the complaint through discussion aimed at reaching agreement.
4. Respect will be shown to all parties.

### **Formal Process**

1. A formal complaint may arise following an informal process that has not been resolved or receipt of a formal complaint signed and in writing to the Chairperson or Vice Chairperson. Anonymous complaints will not be considered.
2. The Chairperson or Vice Chairperson will convene a Complaints/Disciplinary Panel comprising of three Committee members (normally the Chairperson or Vice Chairperson and one other) and will set a date for a 'Hearing' at the earliest opportunity. The Panel will ascertain:

- i. Details of what, when, and where the occurrence took place
  - ii. Any witness statement and names
  - iii. Names of any others who have been treated in a similar way
  - iv. Details of any former complaints made about the incident, date, when and to whom made
  - v. A preference for a solution to the incident.
3. Respondents will be advised of the date of the Hearing and may attend.
4. All written case evidence, including witness statements, will be collected by a nominated member of the Panel. These will then be circulated to other panel members and the respondent at least 3 days before the Hearing. The Panel may also seek to interview other parties involved in the incident and/or witnesses. Proceedings will be minuted.
5. After the Hearing, the Chairperson or Vice Chairperson will report the Panel's findings to the LGFC Committee.
6. On receipt of the Panel's report, the LGFC Committee will determine what action should be taken. Where breaches are proven, usual practice will be to issue a verbal warning for a first offence, a written warning for a second offence and formal dismissal from the club for a third. However serious misconduct cases will usually result in immediate dismissal (see below).
7. Each case will be assessed by the LGFC Committee on an individual basis and the Committee has discretion to depart from these guidelines and action as considered appropriate. Remedies will depend on the severity of the case and may include an apology (verbal or written), counselling, agreement of a behaviour contract, suspension, dismissal from the Club or other form of action.
8. The LGFC Committee will also consider any action considered necessary to prevent a future recurrence within the Club.
9. The Chairperson or Vice Chairperson will write to the complainant confirming the Panel's findings and subsequent decision. There is no right of appeal.
10. The Chairperson or Vice Chairperson will write to the respondent confirming the Panel's findings and subsequent decision.
11. Appeals by respondents against decisions must be made in writing to the Chairperson within 7 days of the date of the decision letter. Appeals will then be considered at the next meeting of the Committee. The respondent will be advised of the outcome in writing.

If the complaint is with regard to the Club's Management Committee the member has the right to report discrimination direct to the relevant County Football Association.

**Serious misconduct cases**, will include incidents:

- involving physical or verbal abuse
- involving child protection issues
- which risk the club's name being brought into disrepute
- where the club will be summoned to an FA disciplinary hearing (e.g. complaints by referees)
- which could jeopardise LGFC's FA Charter Standard Club status
- involving criminal behaviour

In these circumstances, the Chairperson or Vice Chairperson will decide whether the respondent should be suspended from club duties, pending the Hearing. Suspensions will be confirmed in writing. Where appropriate, the Chairperson or Vice Chairperson will arrange for parents to be informed, whilst observing the Respondent's right to confidentiality.